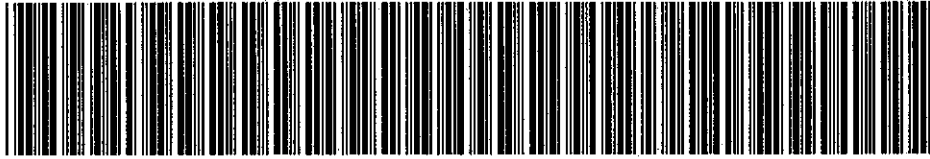


EWR D&I ANNOTATION



FAN-000001L112001DP146-8564

Artemis # : 000001L112001DP146

Record Created Date : 01/30/2012

Printed Date : 02/29/2012

Description : DI11-096 SEQUENCE ID 146. 2007 CHEVROLET COBALT. FATAL. GENERAL MOTORS IS NAMED AS THE DEFENDANT IN A LAWSUIT REGARDING A SINGLE VEHICLE FATAL CRASH THAT OCCURRED IN TURKEY. A TRANSLATION OF THE POLICE REPORT AND LAWSUIT WERE PROVIDED. THE LAWSUIT STATES THAT DUE TO WEATHER CONDITIONS THE DRIVER LOST CONTROL, LEFT THE ROADWAY AND STRUCK A HILL WITH ITS FRONT END. WHEN THE CAR STRUCK THE HILL IT ROLLED OVER. THE DRIVER DIED FROM RESPIRATORY FAILURE DUE TO DAMAGE TO HIS BRAIN TISSUE. THE LAWSUIT STATES THAT NONE OF THE AIRBAGS DEPLOYED AND THAT IF THEY DEPLOYED THE DRIVER COULD HAVE POTENTIALLY SURVIVED THE CRASH. THE LAWSUITS STATES THAT THE DRIVER WAS BELTED BUT THE POLICE REPORT STATES THAT IT IS UNCLEAR WHETHER HE WAS BELTED. THERE ARE SEVERAL AIRBAG NON-DEPLOYMENT RELATED VOQS AND FIELD REPORTS. NO RELEVANT RECALLS. THERE ARE SEVERAL AIRBAG RELATED TSBS. MOST OF THESE DEAL WITH AIRBAG WARNING LIGHTS AND DTCS. *RC

Print

Close



U.S. Department
of Transportation
**National Highway
Traffic Safety
Administration**

1200 New Jersey Avenue SE
Washington, DC 20590

CERTIFIED MAIL
RETURN RECEIPT REQUESTED

September 28, 2011

Ms. Carmen Benavides
General Motors Corp.
Mail Code 480-210-2V1
30001 Van Dyke
Warren, MI 48090

NVS-217kb
DI11-096

Dear Ms. Benavides:

The Office of Defects Investigation (ODI) of the National Highway Traffic Safety Administration (NHTSA) has received information about certain death and injury incidents reported by General Motors Corp. (GM) in its light early warning report from 2nd quarter of 2011. We are writing to request additional information about the following incidents:

Selected Death and Injury Incidents	
For Reporting Category: L	
For the following Sequence IDs: 7, 23, 57, 79, 81, 83, 96, 99, 100, 101, 108, 109, 110, 146, 152, 155, 176, 183, 184, 185, 186, 187, 190, 192, 201, 204, 206, 208, 209, 226, 228, 257, 258, 259, 260, 261, 302, 303, 351, 372, 406, 410, 438, 449, 450, 451, 453, 475, 477, 499	

Unless otherwise stated in the text, the following definitions apply to these information requests:

Incident: each incident identified in the above table.

Claim and Notice: shall have the meanings stated in 49 CFR §579.4(c). Claim and notice also specifically refer to the claim(s) and notice(s) that are the predicate for the early warning report on the incident.

Manufacturer: refers to GM.

Vehicle: the vehicle produced by GM that is identified in the claim or notice.

Tire: the tire produced by GM that is identified in the claim or notice.



Equipment: the item of motor vehicle equipment produced by GM that is identified in the claim or notice.

Defect: means any failure, malfunction, lack of durability, or other problem in performance, construction, a component, or material of a motor vehicle or piece of motor vehicle equipment.

Document: “Document(s)” is used in the broadest sense of the word and shall mean all written, typed, graphic and photographic matter whatsoever (except autopsy photographs), be it in original, copy or electronic form. Any photograph originally produced in color must be provided in color and in electronic form, if possible. Furnish all documents whether verified by GM or not. If a document is not in the English language, provide both the original document and an English translation of the document. Document(s) includes all documents in GM’s custody and/or control.

Please provide numbered responses to the following inquiries, repeating the applicable request verbatim before each response. After GM’s response to each request, identify the source of the information and indicate the last date the information was gathered. When documents are produced, the documents shall be produced in an identified, organized manner that corresponds to each pertinent information request. A separate response must be provided for each incident. Each response, document or attachment must be clearly identified with the incident Sequence ID (SeqID) number.

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.
2. Provide a copy of the Police Accident Report.
3. At your option, provide GM’s assessment of the circumstances that led to the incident including GM’s analysis of the claim and/or notice regarding allegations of a defect.

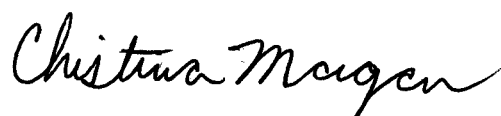
If GM claims that any of the information or documents provided in response to this information request constitute confidential commercial material within the meaning of 5 U.S.C. § 552(b) (4), or are protected from disclosure pursuant to 18 U.S.C. § 1905, GM must submit supporting information together with the materials that are the subject of the confidentiality request, in accordance with 49 CFR Part 512, as amended (69 Fed. Reg. 21409 et seq; April 21, 2004), to the Office of Chief Counsel (NCC-110), National Highway Traffic Safety Administration, 1200 New Jersey Avenue, S.E., Washington, D.C. 20590. GM is required to submit two copies of the documents containing allegedly confidential information (except only one copy of blueprints) and one copy of the documents from which information claimed to be confidential has been deleted. Please remember that the words “CONFIDENTIAL BUSINESS INFORMATION” must appear at the top of each page containing information claimed to be confidential, and the information must be clearly identified in accordance with 5 U.S.C. § 512.6. If you submit a

request for confidentiality for all or part of your response to this letter, that is in an electronic format (e.g., CD-ROM), your request and associated submission must conform to the new requirements in NHTSA's Confidential Business Information Rule regarding submissions in electronic formats (49CFR 512.(c)). See Federal Register, volume 72, page 59434 (October 19, 2007).

Your response to this letter, together with a copy of any confidentiality request, must be submitted to this office by **October 28, 2011**. Please include in your response the identification codes referenced on page one of this letter. If you are unable to provide all of the information requested within the time allotted, you must request an extension from me at (202) 366-4238, no later than five business days before the response due date. If all of the information requested by the original deadline is unavailable, you must submit a partial response by the original deadline with whatever information then is available, even if an extension is granted.

If you have any technical questions concerning this matter, please contact Mr. Leo Yon at (202) 366-7028 or by fax at (202) 366-7882.

Sincerely,

A handwritten signature in black ink that reads "Christina Morgan". The script is fluid and cursive, with the first name "Christina" and last name "Morgan" clearly legible.

Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
Enforcement



GENERAL MOTORS LLC
Global Interior and Safety Center

October 28, 2011

OCT 28 2011

Ms. Christina Morgan, Chief
Early Warning Division, NVS-217
Office of Defects Investigation
National Highway Traffic Safety Administration
1200 New Jersey Ave., SE
Washington, DC 20590

NVS-217kb
DI11-096
Partial Response

Dear Ms. Morgan:

This is General Motors' (GM) partial response to your inquiry dated September 28, 2011, regarding certain death and injury incidents reported by GM in its light vehicle early warning report from the 2nd quarter of 2011.

GM's response is comprised of 48 disks for the incidents that are the subject of DI11-096.

Attachment "A" includes instructions for navigating the disk. Each disk, on its face, is identified by the NHTSA Sequence ID number, the Manufacturer's Unique ID number and the year, make and model of the vehicle involved in the incident, e.g., 7 342947291-728355 and 2011 BUICK ENCLAVE. When the disk is launched, this identification number appears again along with all of the documents on the disk (including photographs and videos, if applicable) listed under "Filename". The first document listed under Filename is an index with the Request and Responses, e.g., identified as 7 342947291-728355_00_Request and Responses. The index is numbered 1 through 3 to correspond to Inquiries 1 through 3, which are repeated verbatim below. The index also details whether any documents responsive to each inquiry were located.

For example, the Inquiry and Response in the index
for the disk are as follows:

DI11-096
7 342947291-728355
2011 BUICK ENCLAVE

Request for Information:

1. **Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.**

Response: See attached document.



2. Provide a copy of the Police Accident Report.

Response: See attached documents and photographs.

The remaining documents listed under Filename, reference the Manufacturer's Unique ID number along with the responsive Inquiry number. For example:

7 342947291-728355_01_001- is the first document responsive to Inquiry no.1.

7 342947291-728355_02_001- is the first document responsive to Inquiry no. 2.

Your inquiries and our corresponding replies are as follows:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See attached document.

The table below lists the incident that is the subject of DI11-096, by Reporting Category, Sequence ID, VIN and type of notice received by GM (as "notice" is commonly used, not as it is defined by 49 C.F.R. §579.4(c)). Incidents reported on GM's Early Warning Report Death and Injury worksheet fall into four categories: Lawsuit (LIT), NISM (Not In Suit Matters), Product Allegation Resolution (PAR) or Rumor (RMR). Lawsuit and NISM case types generally meet the §579.4(c) definition of "claim". PAR cases, in this context, refer to customer contacts in which an injury or fatality is alleged to have occurred as a result of a product defect, and are accompanied by a writing that may or may not meet the §579.4(c) definition of "claim" or "notice". Rumor incidents do *not* involve a written or verbal, implied or express allegation of a defect by a customer. Rather, rumor cases generally refer to incidents that GM learned of through the media, which were subsequently investigated further.

(48 Vehicles from the Light Vehicle Template)		
SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
7	5GAKRBED5BJ	NISM
23	1G4HE5EM3AU	NISM
57	1G6DE5EYXB0	NISM
79	3GYFNDEY0AS	NISM
81	3GYFNDEY7BS	NISM
83	3GYFNBEY6BS	NISM
96	KL1TD56EX9B	NISM
99	KL1TD5DE3BB	NISM
100	KL1TD5DE2BB	NISM
101	KL1TD6DE0BB	NISM
108	2G1FC1ED8B9	NISM
109	2G1FC1ED9B9	NISM
110	2G1FK1EJ3B9	NISM

SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
146*	UNKNOWN	LIT
152	1G1AL58F587 [REDACTED]	NISM
155*	UNKNOWN	LIT
176	1GCESC91B8 [REDACTED]	NISM
183	1G1PH5S91B7 [REDACTED]	NISM
184	1G1PF5S95B7 [REDACTED]	NISM
185	1G1PC5SH0B7 [REDACTED]	NISM
186	1G1PG5S97B7 [REDACTED]	NISM
187	1G1PF5S96B7 [REDACTED]	NISM
190	1G1PC5SH4B7 [REDACTED]	NISM
192	2CNDL73F856 [REDACTED]	NISM
201	2CNDL737586 [REDACTED]	NISM
204	2CNALBEW0A6 [REDACTED]	NISM
206	2CNFLEEC3B6 [REDACTED]	NISM
208	2GNALBEC0B1 [REDACTED]	NISM
209	2GNALFEC3B1 [REDACTED]	NISM
226	3GNBACFU5BS [REDACTED]	NISM
228	3GNBABFW7BS [REDACTED]	NISM
257	2G1WB5EKXB1 [REDACTED]	NISM
258	2G1WA5EKXB1 [REDACTED]	NISM
259	2G1WB5EK4B1 [REDACTED]	NISM
260	UNKNOWN	NISM
261	2G1WG5EK8B1 [REDACTED]	NISM
302	1G1ZB5E17BF [REDACTED]	NISM
303	1G1ZC5EU3BF [REDACTED]	LIT
351	1GC4K1C81BF [REDACTED]	NISM
372	1GNFC13087R [REDACTED]	NISM
406	1GNKVGED7BJ [REDACTED]	NISM
410	1G1RD6E48BU [REDACTED]	NISM
438	2GTEK13V871 [REDACTED]	NISM
449	2CTALMEC6B6 [REDACTED]	NISM
450	2CTALMEC2B6 [REDACTED]	NISM
451	2CTALUEC2B6 [REDACTED]	NISM
453	2CTALMEC0B6 [REDACTED]	NISM
475	1G2ZG57B584 [REDACTED]	NISM
477	1G2ZH57N094 [REDACTED]	NISM
499	1G2MB33B36Y [REDACTED]	NISM

* Sequence ID numbers 146 and 155 are not included in this partial response and will be sent at a later date as soon as the documents have been translated.

2. Provide a copy of the Police Accident Report.

Response: If available, see attached document(s) and photograph(s) on the enclosed disk(s).

- 3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.**

Response: GM opts not to respond.

GM claims that certain information, in documents that are part of rumor, claim and lawsuit files maintained by the GM Legal Staff and its outside counsel, is attorney work product and/or privileged. That information includes notes, memos, reports, photographs and evaluations by attorneys (and by consultants, claims analysts, investigators and engineers working at the request of attorneys). GM is producing responsive documents from its rumor, claim and lawsuit files that are neither attorney work product nor privileged and withholding those that are attorney work product and/or privileged.

This response was compiled and prepared by this office upon review of documents retrieved by GM and does not include documents generated or received subsequent to the searches.

Please contact me at if you require further information.

Sincerely,

A handwritten signature in black ink, appearing to read "M. Carmen Benavides".

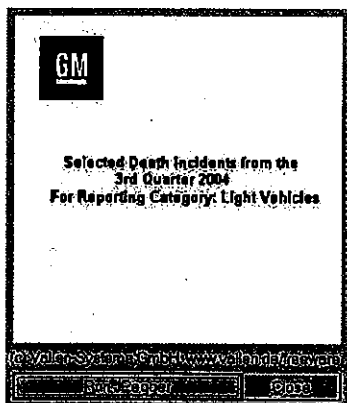
M. Carmen Benavides, Director
Product Investigations and Safety Regulations

Enclosures: 48 Disks
Attachment A

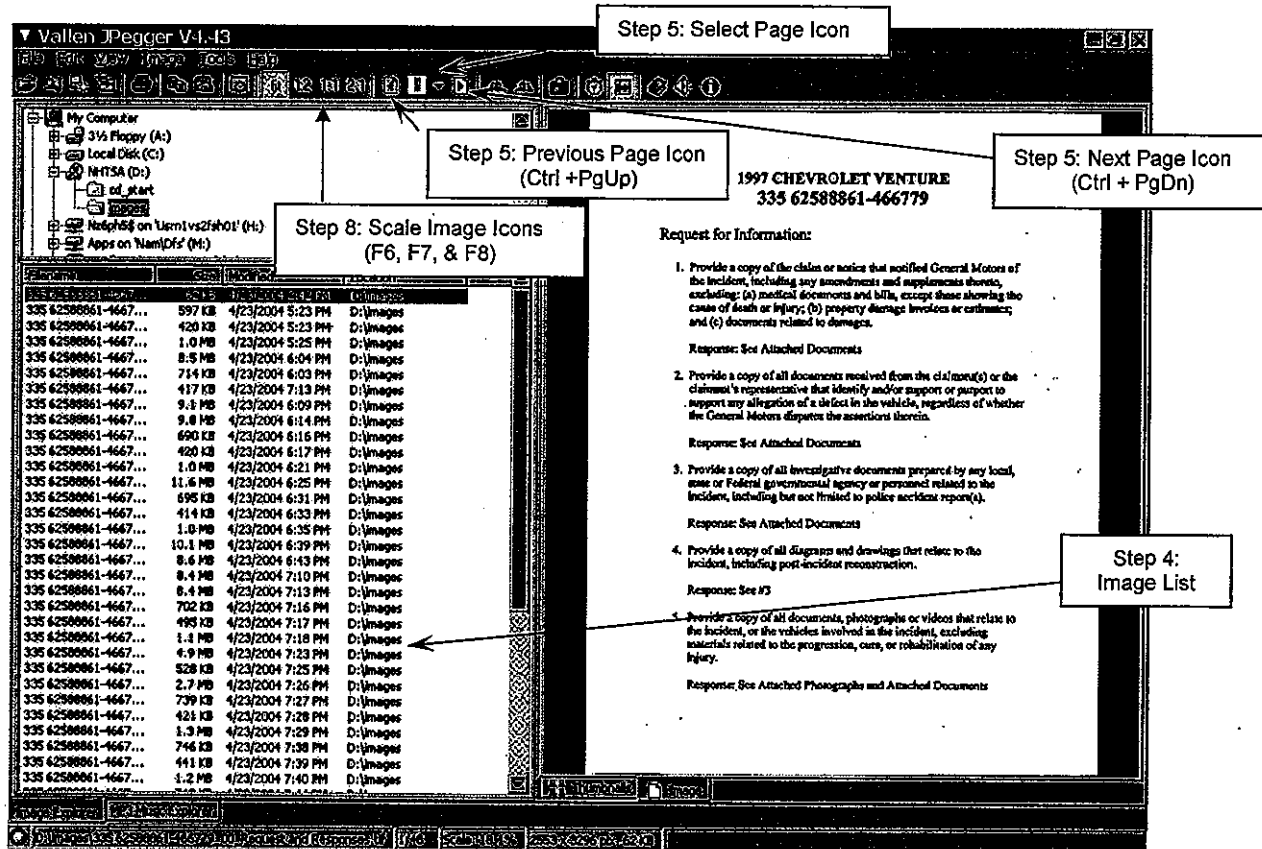
Attachment A

Instructions for using Disk Viewer

1. Insert the disk into the disk ROM drive; the disk will open automatically.
2. Click the "Run JPegger" button on the pop up window.



3. The program will launch in the browsing mode, which is shown in the image below.
4. You can use the down-arrow key on your keyboard to browse through the images.



- Each image file may contain multiple pages. In the browsing mode use **Next Page Icon (Ctrl + PgDn)**, **Select Page Icon** or **Previous Page Icon (Ctrl + PgUp)** to browse through all of the pages within an image file. (Note: Some image files may contain up to 80 pages.)
- By double-clicking on an image from the file list, a slide show will initiate, however, it will not automatically advance through the pages. Use **Ctrl + PgDn** or **Ctrl + PgUp** to browse through all of the pages within an image file. Left-clicking on an image, while in the slide show mode, will advance to the first page of the next image file.
- Right click on the image to see the image properties, as shown below. Image properties can also be used to view each page within the documents (Next Page), or to view the next document within the file list (Next Image).
- If the image is difficult to view, the scale may be changed. Use **F5**, **F6**, **F7** and **F8** to alternate between scales that fit the screen, or are 50%, 100%, and 200% of the image's original size.

ATTENTION: ON PARTY'S MOTION, ATTORNEY'S FEES AND COSTS MAY BE AWARDED ERIC D. PARIS, ESQ., S/B/S 167936 LAW OFFICES OF ERIC D. PARIS & ASSOCIATES 221 S. THOMAS STREET SUITE 403 POMONA, CALIFORNIA 91766 Telephone no.: 909-482-5127 Facsimile: 909-469-5126 Attorney for Plaintiff		CASE NUMBER JUDGE/JUDGE
DIVISION COURT FOR THE STATE OF CALIFORNIA DISTRICT COURT		
CASE NAME: CARDONA V. CHEVROLET		
CIVIL CASE COVER SHEET ☐ Unfiled ☒ Unfiled	Complete Case Designation ☐ Civil ☐ Labor Filed with last appearance by defendant (Civil Rules of Court, rule 161)	CASE NUMBER JUDGE/JUDGE

Please complete all five (5) lower boxes

1. Check one box below for the case type that best describes this case: Auto Tort: ☒ Auto (20) Other Personal Injury/Property Damages (Auto and Non-Auto Tort) ☐ Assault (24) ☐ Product Liability (26) ☐ Medical Malpractice (40) ☐ Other Personal (28) Non-Personal Injury (Contract Tort) ☐ Business/Professional Services (30) ☐ Contract (32) ☐ Real Estate (34) ☐ Defamation (e.g., libel, slander) (35) ☐ Fraud (16) ☐ Intellectual Property (19) ☐ Professional Malpractice (e.g., legal malpractice) (22) ☐ Other non-Personal Tort (24) Miscellaneous: ☐ Wrongful Termination (36)	☐ Other employment (18) ☐ Insurance ☐ Breach of contract/contract (38) ☐ Collections (e.g., money owed, open book accounts) (39) ☐ Partnership ☐ Real Property ☐ Consumer transactions (4) ☐ Wrongful eviction (23) ☐ Other real property (e.g., sale of land) (28) Universal Donor ☐ Consumer (1) ☐ Residential (33) ☐ Drugs (46) ☐ Medical Malpractice ☐ Adult Injuries (37) ☐ Professional malpractice (11)
---	--

2. This case ☒ is ☐ is not complete under rule 1000 of the California Rules regarding summary judgment/motion.

3. ☒ Large number of allegedly relevant parties ☐ Large number of allegedly relevant parties in other counties

4. ☒ Extensive motion practice taking difficult or novel issues that will be time-consuming to resolve ☐ Substantial proof of documentary evidence

5. ☒ Substantial proof of documentary evidence ☐ Substantial proof

6. ☒ Type of motion sought (check all that apply):
☐ Summary Judgment ☐ Summary Judgment, declaratory or injunctive relief

7. Number of causes of action pleaded: ☐ None ☐ One ☐ Two ☐ Three ☐ Four ☐ Five ☐ Six ☐ Seven ☐ Eight ☐ Nine ☐ Ten ☐ Eleven ☐ Twelve ☐ Thirteen ☐ Fourteen ☐ Fifteen ☐ Sixteen ☐ Seventeen ☐ Eighteen ☐ Nineteen ☐ Twenty ☐ Twenty-one ☐ Twenty-two ☐ Twenty-three ☐ Twenty-four ☐ Twenty-five ☐ Twenty-six ☐ Twenty-seven ☐ Twenty-eight ☐ Twenty-nine ☐ Thirty ☐ Thirty-one ☐ Thirty-two ☐ Thirty-three ☐ Thirty-four ☐ Thirty-five ☐ Thirty-six ☐ Thirty-seven ☐ Thirty-eight ☐ Thirty-nine ☐ Forty ☐ Forty-one ☐ Forty-two ☐ Forty-three ☐ Forty-four ☐ Forty-five ☐ Forty-six ☐ Forty-seven ☐ Forty-eight ☐ Forty-nine ☐ Fifty ☐ Fifty-one ☐ Fifty-two ☐ Fifty-three ☐ Fifty-four ☐ Fifty-five ☐ Fifty-six ☐ Fifty-seven ☐ Fifty-eight ☐ Fifty-nine ☐ Sixty ☐ Sixty-one ☐ Sixty-two ☐ Sixty-three ☐ Sixty-four ☐ Sixty-five ☐ Sixty-six ☐ Sixty-seven ☐ Sixty-eight ☐ Sixty-nine ☐ Seventy ☐ Seventy-one ☐ Seventy-two ☐ Seventy-three ☐ Seventy-four ☐ Seventy-five ☐ Seventy-six ☐ Seventy-seven ☐ Seventy-eight ☐ Seventy-nine ☐ Eighty ☐ Eighty-one ☐ Eighty-two ☐ Eighty-three ☐ Eighty-four ☐ Eighty-five ☐ Eighty-six ☐ Eighty-seven ☐ Eighty-eight ☐ Eighty-nine ☐ Ninety ☐ Ninety-one ☐ Ninety-two ☐ Ninety-three ☐ Ninety-four ☐ Ninety-five ☐ Ninety-six ☐ Ninety-seven ☐ Ninety-eight ☐ Ninety-nine ☐ One hundred ☐ One hundred one ☐ One hundred two ☐ One hundred three ☐ One hundred four ☐ One hundred five ☐ One hundred six ☐ One hundred seven ☐ One hundred eight ☐ One hundred nine ☐ One hundred ten ☐ One hundred eleven ☐ One hundred twelve ☐ One hundred thirteen ☐ One hundred fourteen ☐ One hundred fifteen ☐ One hundred sixteen ☐ One hundred seventeen ☐ One hundred eighteen ☐ One hundred nineteen ☐ One hundred twenty ☐ One hundred twenty one ☐ One hundred twenty two ☐ One hundred twenty three ☐ One hundred twenty four ☐ One hundred twenty five ☐ One hundred twenty six ☐ One hundred twenty seven ☐ One hundred twenty eight ☐ One hundred twenty nine ☐ One hundred thirty ☐ One hundred thirty one ☐ One hundred thirty two ☐ One hundred thirty three ☐ One hundred thirty four ☐ One hundred thirty five ☐ One hundred thirty six ☐ One hundred thirty seven ☐ One hundred thirty eight ☐ One hundred thirty nine ☐ One hundred forty ☐ One hundred forty one ☐ One hundred forty two ☐ One hundred forty three ☐ One hundred forty four ☐ One hundred forty five ☐ One hundred forty six ☐ One hundred forty seven ☐ One hundred forty eight ☐ One hundred forty nine ☐ One hundred fifty ☐ One hundred fifty one ☐ One hundred fifty two ☐ One hundred fifty three ☐ One hundred fifty four ☐ One hundred fifty five ☐ One hundred fifty six ☐ One hundred fifty seven ☐ One hundred fifty eight ☐ One hundred fifty nine ☐ One hundred sixty ☐ One hundred sixty one ☐ One hundred sixty two ☐ One hundred sixty three ☐ One hundred sixty four ☐ One hundred sixty five ☐ One hundred sixty six ☐ One hundred sixty seven ☐ One hundred sixty eight ☐ One hundred sixty nine ☐ One hundred seventy ☐ One hundred seventy one ☐ One hundred seventy two ☐ One hundred seventy three ☐ One hundred seventy four ☐ One hundred seventy five ☐ One hundred seventy six ☐ One hundred seventy seven ☐ One hundred seventy eight ☐ One hundred seventy nine ☐ One hundred eighty ☐ One hundred eighty one ☐ One hundred eighty two ☐ One hundred eighty three ☐ One hundred eighty four ☐ One hundred eighty five ☐ One hundred eighty six ☐ One hundred eighty seven ☐ One hundred eighty eight ☐ One hundred eighty nine ☐ One hundred ninety ☐ One hundred ninety one ☐ One hundred ninety two ☐ One hundred ninety three ☐ One hundred ninety four ☐ One hundred ninety five ☐ One hundred ninety six ☐ One hundred ninety seven ☐ One hundred ninety eight ☐ One hundred ninety nine ☐ Two hundred ☐ Two hundred one ☐ Two hundred two ☐ Two hundred three ☐ Two hundred four ☐ Two hundred five ☐ Two hundred six ☐ Two hundred seven ☐ Two hundred eight ☐ Two hundred nine ☐ Two hundred ten ☐ Two hundred eleven ☐ Two hundred twelve ☐ Two hundred thirteen ☐ Two hundred fourteen ☐ Two hundred fifteen ☐ Two hundred sixteen ☐ Two hundred seventeen ☐ Two hundred eighteen ☐ Two hundred nineteen ☐ Two hundred twenty ☐ Two hundred twenty one ☐ Two hundred twenty two ☐ Two hundred twenty three ☐ Two hundred twenty four ☐ Two hundred twenty five ☐ Two hundred twenty six ☐ Two hundred twenty seven ☐ Two hundred twenty eight ☐ Two hundred twenty nine ☐ Two hundred thirty ☐ Two hundred thirty one ☐ Two hundred thirty two ☐ Two hundred thirty three ☐ Two hundred thirty four ☐ Two hundred thirty five ☐ Two hundred thirty six ☐ Two hundred thirty seven ☐ Two hundred thirty eight ☐ Two hundred thirty nine ☐ Two hundred forty ☐ Two hundred forty one ☐ Two hundred forty two ☐ Two hundred forty three ☐ Two hundred forty four ☐ Two hundred forty five ☐ Two hundred forty six ☐ Two hundred forty seven ☐ Two hundred forty eight ☐ Two hundred forty nine ☐ Two hundred fifty ☐ Two hundred fifty one ☐ Two hundred fifty two ☐ Two hundred fifty three ☐ Two hundred fifty four ☐ Two hundred fifty five ☐ Two hundred fifty six ☐ Two hundred fifty seven ☐ Two hundred fifty eight ☐ Two hundred fifty nine ☐ Two hundred sixty ☐ Two hundred sixty one ☐ Two hundred sixty two ☐ Two hundred sixty three ☐ Two hundred sixty four ☐ Two hundred sixty five ☐ Two hundred sixty six ☐ Two hundred sixty seven ☐ Two hundred sixty eight ☐ Two hundred sixty nine ☐ Two hundred seventy ☐ Two hundred seventy one ☐ Two hundred seventy two ☐ Two hundred seventy three ☐ Two hundred seventy four ☐ Two hundred seventy five ☐ Two hundred seventy six ☐ Two hundred seventy seven ☐ Two hundred seventy eight ☐ Two hundred seventy nine ☐ Two hundred eighty ☐ Two hundred eighty one ☐ Two hundred eighty two ☐ Two hundred eighty three ☐ Two hundred eighty four ☐ Two hundred eighty five ☐ Two hundred eighty six ☐ Two hundred eighty seven ☐ Two hundred eighty eight ☐ Two hundred eighty nine ☐ Two hundred ninety ☐ Two hundred ninety one ☐ Two hundred ninety two ☐ Two hundred ninety three ☐ Two hundred ninety four ☐ Two

**Step 7: Next File
(Image)**

Step 7: Next Page

Step 8: Scale Image

Step 7: Image Properties



GENERAL MOTORS LLC
Global Interior and Safety Center

December 12, 2011

Ms. Christina Morgan, Chief
Early Warning Division, NVS-217
Office of Defects Investigation
National Highway Traffic Safety Administration
1200 New Jersey Ave., SE
Washington, DC 20590

NVS-217kb
DI11-096
Complete Response

Dear Ms. Morgan:

This is General Motors' (GM) complete response to your inquiry dated September 28, 2011, regarding certain death and injury incidents reported by GM in its light vehicle early warning report from the 2nd quarter of 2011. Sequence IDs 146 and 155 have been translated.

GM's response is comprised of 2 disks for the incidents that are the subject of DI11-096.

Please contact me at if you require further information.

Sincerely,

Dwayne Davidson, Sr. Manager
Product Investigations and TREAD Reporting

Enclosure: 2 Disks



DI11-096
146 342948117-731764
2007 CHEVROLET COBALT

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Documents.

2. Provide a copy of the Police Accident Report.

Response: See Attached Document.

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: GM opts not to respond.

ANKARA CONSUMER COURT

PLAINTIFF : [REDACTED] as the legal Proxy of [REDACTED]
LAWYER : Av. [REDACTED]
DEFENDANT : OPEL General Motors Türkiye Lrd Şti.
SUBJECT : 70.000 TL related to the non-inflation of airbags during a collision
CASE VALUE : 70.000 TL
CLAIMS :

- 1- As stated in the crash report [REDACTED] father of [REDACTED] and husband of [REDACTED] has died on the accident which happened on the date of 16.06.2009
- 2- According to the death report [REDACTED] died because of respiratory failure due to the damage done to his brain tissue.
- 3- Claims for moral damages

All of the 4 airbags failed to function. The decease died because of the damage to his head and neck. According to the plaintiff the death report clearly explains that the death might have not happened if the airbags has worked.
- 4- Related to the issue of the failure of function of 4 airbags, a declaratory judgement of Kadiri Court of Peace has been issued by the plaintiff.
- 5- According the declaratory judgement and experts report; the airbags which has been located on the steering wheel, next to driver seat and front passenger seat has failed to function.
- 6- Because of this accident the husband of [REDACTED] and father of [REDACTED] has died.
- 7- Despite the fact that they are wearing seat belts the airbags failed to function. The plaintiff also claimed that GMT has betrayed their trust in GMT's multi national brand.
- 8- GMT is responsible for faulty production. According to the plaintiff of airbags will constitute a failure According to Consumer Law article 4.
- 9- According to the article 47 of Law of Obligations connection between crash and death can be established. The death has resulted due to failure of non-inflation of

the airbags. [REDACTED] husband and [REDACTED] father has died and this caused them material and moral damage.

10- Declaration related to Judicial Rights

According to article 23 of Consumer Law its clear that consumer courts are responsible for over seeing the case file.

LIST OF EVIDENCES :

- 1- Traffic Crash Report
- 2- Death and Autopsy Report
- 3- Burial Licence
- 4- Birt Record
- 5- Vehicle Licence
- 6- Declatory Judgement of Osmaniye Kadirli Court of Peace
- 7- Expert Report (12.08.2009)
- 8- Expert Report, Witness Testimony

CLAIMS : 70.000 TL with he interest starting from date of the crash for material and moral compensation

THE NOTIFICATION RECORD

TC.

İZMİR 2. CONSUMER COURT

CASE NO: 2011/890

Name and Surname: DEFENDANT General Motors Türkiye Ltd Şti

Current Resides in:

Kemalpaşa Road 35860 Torbalı/İzmir

[BOX]

Hearing Date: 26.10.2011

Hearing Time:10:45

Hearing Court: İzmir 2. Consumer Court

**İZMİR NÖBETÇİ TÜKETİCİ MAHKEMESİ HAKİMLİĞİNE GÖNDERİLMEK
ÜZERE ANKARA NÖBETÇİ TÜKETİCİ MAHKEMESİ SAYIN HAKİMLİĞİNE**

DAVACI : Kendi adına asaleten küçük Sudenaz ERKOL'a velayeten
Ayşe ERKOL .T.C Kimlik No: **66487313828**

VEKİLİ : Av.Duygu SEVİMLİ
Kuleli Sokak No : 83/12 Gaziosmanpaşa / ANKARA

DAVALI : Opel General Motors Türkiye Ltd Şti
Kemalpaşa Yolu 35860 Torbalı / İZMİR

TALEP KONUSU : 2001 Model Opel Astra marka ve 57 KA 818 Plakalı otomobilin hava yastıklarının açılmaması nedeni ile , 70.000,00 TL manevi tazminat davası talebidir .

DAVA DEĞERİ : 70.000,00 TL.

AÇIKLAMALAR :

1- 16.06.2009 Tarihinde Pozanlı-Tarsus karayolunda meydana gelen trafik kazası neticesinde tutulan Karayolları Trafik Kaza Tespit Tutanağı'ndan da anlaşılacağı üzere (EK-1) , müvekkilim Ayşe ERKOL'un eşi ve küçük kızı Sudenaz ERKOL'un babası Abdullah ERKOL yaşamını yitirmiştir .

2- Müteveffa Abdullah ERKOL'a ait 2001 model Opel Astra marka araç içerisinde gerçekleşen kaza neticesinde , müteveffa Abdullah ERKOL'un ölüm nedeni , **kafa travmasına bağlı multipl kafa kemiği kırığına bağlı beyin dokusu hasarı nedeni ile solunum ve dolaşım durmasına bağlı olduğu , 16.06.2009 Tarihli Ölü Muayene ve Otopsi Raporunun Doktor Bilirkişi Mütalaası başlıklı bölümünde belirtilmiştir.** (EK-2)

3- MANEVİ TAZMİNAT TALEBİ NEDENLERİ :

Meydana gelen ve ölümle sonuçlanan bu denli ağır bir trafik kazasında , sözü edilen **araçta bulunan 4 HAVA YASTIĞININ** hiçbiri açılmamıştır . Müteveffa yaşamını baş ve boyun bölgesinden aldığı darbe neticesinde kaybetmiştir. Zira , araçta bulunan hava yastıkları açılmış olsa idi , müteveffanın bu denli ölümcül bir darbe almayacağı düzenlenen ve yukarıda bahsi edilen Ölü Muayene ve Otopsi Raporundan da açıkça anlaşılabacaktır .

4- Söz konusu araçta bulunan 4 hava yastığının açılmadığı hususunun belirlenmesi ve davalı tarafa açacağımız davalara delil niteliğinde sunulmak üzere tarafımızca : 24/07/2009 tarihinde Osmaniye Kadiri Sulh Hukuk Mahkemesi'ne 2009/70 D.İş sayılı dosya ile tespit talebinde bulunulmuştur. Talebimize binaen 24/07/2009 tarihinde tespit yapılmasına karar verilmiştir . (EK-6)

5- 24/07/2009 tarihinde mahkeme ve uzman bilirkişi heyeti tarafından , aracın

5- 24/07/2009 tarihinde mahkeme ve uzman bilirkişi heyeti tarafından , aracın bulunduğu Kadırlı İlçesi Cernalpaşa Mahallesi Sanayi Sitesinde bulunan aracın yanına gelinerek tespit gerçekleştirilmiştir.Tespit akabinde , 12/08/2009 tarihli bilirkişi raporu düzenlenmiş olup söz konusu raporda , araçta ; bir tanesi şoför mahalinde direksiyon simidinde , iki tanesi yine şoför mahalinde koltuk yanlarında diğeri ön yolcu koltuğu mahalinin göğüs kısmında bulunduğu ve bu dört hava yastığının da kaza esnasında açılması gerekirken açılmadığı tespit edilerek bu husus dilekçemiz ekinde sunulan 12/08/2009 tarihli bilirkişi raporunda da açıkça tespit edilmiştir . (EK-7).

6- Mezkur kaza neticesinde , müvekkilim eşini kaybetmiş ve geriye bu evlilik birliğinden olan küçük kızları Sudenaz ERKOL ile kendisi kalmıştır .

7- Dünya çapında güvenilirliği ile itimat edilen davalı firma , meydana gelebilecek kazalarda , alınabilecek ölümcül darbelerle karşı araçtaki emniyeti azami ölçüde sağlamak zorundadır. Zira söz konusu araç alınırken , araçta 4 adet hava yastığının bulunması , gerek müteveffa gerekse mağdur müvekkil tarafından öncelikli tercih sebebi olmuştur. Müteveffa emniyet kemeri takılı olmasına karşın , böylesine bir kaza neticesinde açılması gereken hava yastıklarının açılmaması nedeni ile ölümcül darbelerle maruz kalmış ve neticede hayatını kaybetmiştir .

8- DAVALI FİRMANIN AYIPLI MAL YÖNÜNDEN SORUMLULUĞU
SÖZ KONUSUDUR . Şöyle ki ; Ayıplı Malın Neden Olduğu Zararlardan Dolayı Sorumluluk Hakkındaki Yönetmeliğin 5/1.maddesinde ayıp kavramının tanımı yapılmıştır. Bahsi geçen yönetmeliğin ilgili maddesine göre ; "AYIP ; MALIN PİYASAYA SUNUM TARZI , MAKUL KULLANIM SEKLİ VE PİYASAYA SÜRÜLDÜĞÜ AN VE BENZERİ DİĞER HUSUSLAR GÖZ ÖNÜNE ALINARAK , BİR KİMSENİN O MALDAN HAKLI OLARAK BEKLEYEBİLECEĞİ GÜVENLİĞİ SAĞLAMAYAN MAL AYIPLI SAYILIR ." şeklinde tanım yapılmıştır . Mevcut olayda , şartları olduğu halde , araçta bulunan hava yastıkları açılmamıştır . Bu durumu aracın gerek görsel anlamda gerekse işitsel anlamda yapılan reklamlarında belirtilen güvenilirliğe tamamen ters düşmektedir. Dolayısı ile davalı firmanın ayıplı üretmiş olduğu araç nedeni ile sorumluluğunun bulunduğu dair karar verilmesi gerektiği görüldü ve kanaatindeyiz .

9-BORÇLAR KANUNU'NUN 47. MADDESİNDE DÜZENLENEN TAZMİNAT KOŞULLARI YÖNÜNDEN TAZMİNAT NEDENLERİMİZ :

Borçlar Kanununda ; maddi ve manevi tazminatın istenebilmesi için öncelikli bir zararın doğmuş olması gerekmektedir . Mezkur kazanın oluşumu ile söz konusu zarar meydana gelmiştir . Meydana gelen zarar ile sonuç arasında illiyet bağının mevcut olması gerekmektedir. Söz konusu kaza neticesinde hava yastıklarının açılmaması nedeni ile müteveffa , direksiyon simidinde ve sürücü koltuklarının yanında bulunan hava yastıklarının açılmaması nedeni ile baş ve boyun bölgesinden aldığı darbeler neticesinde yaşamını yitirmiştir. Meydana gelen zarar vücut veya manevi bütünlük üzerinde telafisi güç bir iz bırakmalıdır. Müvekkilim Ayşe ERKOL, genç yaşta eşini ve küçük kızları Sudenaz ERKOL, ise babasını kaybetmiştir . Söz konusu bu nedenler gerek cismani gerekse ruhsal yönden son derece ağır travmalara neden olmuştur ve yaşamlarının sonuna dek de bu acı iz devam edecektir . Kaldı ki ; müvekkilim ve küçük kızı olayın şokunu halen tizerlerinden atabilmiş değillerdir .

8- GÖREV YÖNÜNDEN BEYANLARIMIZ : Yerleşmiş Yargıtay İçtihatlarında belirtildiği üzere ; bir hukuki işlemin 4077 Sayılı Yasa kapsamında kaldığının kabul edilebilmesi için yasanın amacı içerisinde ; tarafların arasında mal ve hizmet satışıma ilişkin bir hukuki işlemin olması gerekmektedir . Somut uyumsuzlukta taraflar arasındaki ilişkin 4077 Sayılı Yasa kapsamında kaldığı açıktır .4077 Sayılı Yasanın

avukatı Dr. Ayşe

23.maddesi , bu kanunun uygulanması ile ilgili her türlü ihtilafa Tüketici Mahkemelerinde bakılacağını öngörmüştür.

9- Hukuk sistemimizde kabul gördüğü üzere : tazminat talebinin amacı **kazanc sağlamak değil; uğranılan cismani ve ruhsal zarardan dolayı kişinin çektiği manevi ve duygusal acının hafifletilmesini sağlamaktır.** Yaşam boyu çşinin desteğinden ve varlığından mahrum kalan müvekkilimiz Ayşe, ERKOL ve küçük yaşta babasını yitiren ve hayatı boyunca da bunun eksikliğini hissedecek olan SudeNaz ERKOL'un çektiği acının maddi olarak karşılanması mümkün olmamakla beraber , acılarının bir nebze dahi olsa hafifletilmesi amacı ile davalı firma aleyhine işbu manevi tazminat talebini içerir davanın açılması zarureti hasıl olmuştur .

HUKUKİ NEDENLER : BK,MK,HUMK, A.v.Kanunu ve sair ilgili tüm yasal mevzuat .

HUKUKİ DELİLLER : Karşı delil sunma hakkımız saklı kalmak kaydı ile şimdilik .

- 1- Trafik Kazası Tespit Tutanağı
- 2- Ölü Muayene ve Otopsi Raporu
- 3- Defin Ruhsatı
- 4- Nüfus Kaydı
- 5- 57 KA 818 Plakalı araca ait ruhsatname
- 6- Osmaniye Kadırlı Sulh Hukuk Mahkemesi'nin 2009 / 70 D.İş sayılı kararı
- 7- 12/08/2009 tarihli Bilirkişi Raporu
- 8- Bilirkişi incelemesi , keşif , tanık ve her türlü yasal delil.

NETİCE ve İSTEM : Yukanda arz ve izah edilen nedenler doğrultusunda , fazlaya ilişkin talep ve dava hakkımız mahfuz tutulmak kaydı ile ; davalı aleyhine açılmış olunan Manevi Tazminat talebimizin , kaza tarihi olan 16.06.2009 tarihinde itibaren yasal faizi ile birlikte 70.000.00 TL'nin tahsili ile yargılama giderleri ve vekalet ücretinin davalı yan üzerinde bırakılmasına karar verilmesini vekaleten saygılarımızla arz ve talep ederiz . 26/08/2009 .

DAVACI VEKİLİ
Av.Duygu SEVİMLİ

emine duygu

Buradan kaçıyınız

T.C. İzmir 3. Tüketici Mahkemesi	Dosya No : 2009/429 Esas	mek No:25
01 Ekim 2009	TAAHHÜTİ No:	
Adı Soyadı : DAVALI OPEL GENERAL MOTORS TÜRKİYE LTD.ŞTİ		
Kemalpaşa Yolu 35680 Torbalı/ İzmir		
adresinde bulunur.		
Duruşma Günü: 03/11/2009		
Duruşma Saati: 09:50		
Duruşma Yeri : 3. Tüketici Mahkemesi Duruşma Salonu		
		
BU ZARFTA Dava Dilekçesi VARDIR.		

Buradan kaçıyınız

Dosya hakkında ayrıntılı bilgi edinebilmek için lütfen 40160'a ahoine olunuz. Mesaj içeriği 7 SMS/14 kottördür. Mesaj ayrıntılarına ulaşmak için www.adalet.gov.tr

02-EKİ-2009 09:05 KİMDEN

KİME AY.İZMİR

S:04

TA000117953

TRAFFIC ACCIDENT INVESTIGATION REPORT

SUMMARY OF THE ACCIDENT

Driver, [REDACTED] has lost the control of his vehicle due to the fact that weather is hot humid and dewy and crashed into a hill with front side of the vehicle and rolled over while trying to steer his car to the left section of the road in order to recover the control of his vehicle control. The hill is located out of the road and on the left side of the road. The accident has resulted in physical injury, material damage and death.

Driver [REDACTED] has breached the article 52/1 b of Traffic Law (numbered 2918) (not adjusting the speed of the vehicle according to the road, weather, traffic condition and the physical and technical conditions of the vehicle)

SEAT BELTS

In the traffic accident report it has been stated that it is not clear, if the seat belts of the driver and the deceased during the accident, has fastened or not.

TUTANAGI DÜZENLEYEN A) BİRİM T. ARSUS BÖLGE TRAFİK
B) TEL NO : 0324 6512222

TRAFİK KAZASI TESPİT TUTANAKI
ÖLÜMLÜ ☒ YARALANMALI ☒ MADDİ HASARLI ☒

DİĞER SIRA NO
BÖLÜM I - KAZANIN YERİ VE ZAMANI

1. Polis 2
2. Jandarma 2
Tarih 16.06.2009
Hava durumu 321
Saat / Dakika 17.10
İ. MELKİN
D. CE : TARUS
MAM / KOV : KARSAKAR

1. Yürüşün yeri 2
2. Yürüşün yönü 2
3. Yürüşün hızı 2
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5. Yürüşün yeri 2
6. Yürüşün yönü 2
7. Yürüşün hızı 2
8. Yürüşün zamanı 2
9. Yürüşün yeri 2
10. Yürüşün yönü 2
11. Yürüşün hızı 2
12. Yürüşün zamanı 2

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12. Yürüşün zamanı 2

BÖLÜM II - KAZA TÜRÜ
1. Tekt araç 1
2. Birden fazla araç 1
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BÖLÜM IV - YOL VE ÇEVRE ÖZELLİKLERİ

1. Trafik lambası 2
2. Aydınlatma 2
3. Yol genişliği 2
4. Yaya kaldırımı 2
5. Banket 2
6. Trafik işareti 2

1. Yol çalışması 2
2. Trafik görevlisi 2
3. Görüş engeli 2
4. Kaza sonrası araç hareketi 2
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1. Yol çalışması 2
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3. Görüş engeli 2
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BÖLÜM V - KAZAYA KATILAN ARAÇLAR

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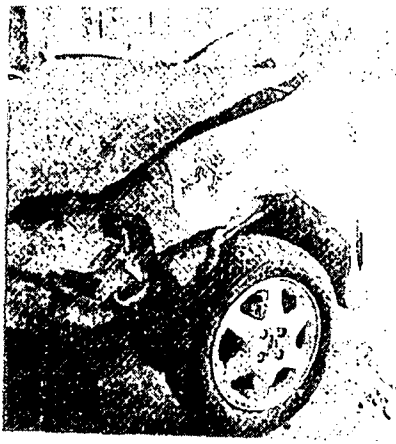
BÖLÜM VI - KAZAYA KATILAN SÜRÜCÜLER

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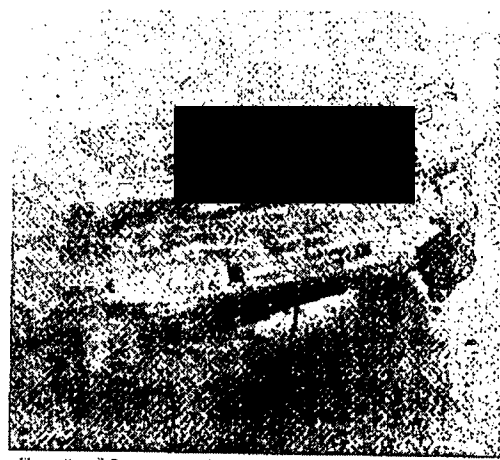
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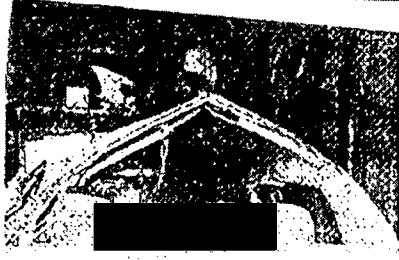
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Fotoğraf 1. Aracın kaza sonrası sol ön çaprazdan görünümü



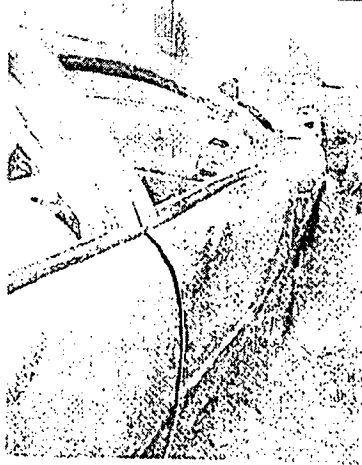
Fotoğraf 2. Aracın kaza sonrası önden görünümü



Fotoğraf 3. Aracın kaza sonrası arkadan görünümü



Fotoğraf 4. Aracın kaza sonrası sol, sol arka ve sol üst görünümü



Fotoğraf 5. Aracın kaza sonrası sağdan görünümü

Ad C. G. m87